
Intellectual Property Rights
Trademarks
Types of Trademarks
Device mark (logo): picture or symbol without words, e.g., cow-head symbol
Word mark: name or word in text form, e.g., NIKE
Colour mark: distinctive colour combination, e.g., Cadbury wrapper
Sound mark: jingle linked to brand, e.g., ICICI Bank jingle
Shape mark: distinctive shape of goods or packaging, e.g., Coca-Cola bottle
Service mark: identifies services, e.g., airline or bank name
Collective mark: used by association members, e.g., CA (Chartered Accountants)
Certification mark: certifies quality or standards, e.g., ISI, Agmark
Registration & Grounds
Initial term & renewal: 10 years, renewable indefinitely
Classification: 45 classes of goods and services
Absolute grounds (Section 9): descriptive or non-distinctive marks, e.g., 'Fresh Juice'
Relative grounds (Section 11): conflicts with earlier similar marks
Infringement & Passing Off
Trademark infringement: Section 29, unauthorized use of registered mark
Passing off: Section 27(2), common law protection for unregistered marks
Civil remedies (Section 135): injunctions, damages, or account of profits
Criminal remedies (Sections 103-104): 6 months to 3 years imprisonment and fine
Patents
Patentability Criteria
Novelty: Section 2(1)(j), new and not previously known
Inventive step: Section 2(1)(ja), non-obvious technical advance
Industrial applicability: Section 2(1)(ac), capable of being made or used in industry
Prior art search: checks existing patents, papers, and products
Registration Procedure (India)
Application forms: Form 1, Form 2 specification, Form 3, and Form 5
Provisional specification: secures early priority date, 12 months for complete spec
Publication: published after 18 months or early via Form 9
Examination: Form 18 request leading to First Examination Report (FER)
Opposition: pre-grant and post-grant opposition available
Term of protection: 20 years from date of filing (Section 53)
Exclusions & Limitations
Section 3(d): new forms of known substances require enhanced efficacy
Section 3(k): algorithms and computer programmes per se excluded
Compulsory licensing (Section 84): granted after 3 years for unfulfilled public demand
Poor drafting impacts: narrows scope, increases objections, and limits commercial value
Infringement & Licensing
Patent infringement: Section 48 violation by unauthorized making, using, or selling
Legal remedies (Section 108): injunctions, damages, or account of profits
Licence agreements: owner grants permission while retaining ownership and earning royalty